

Public Notice

Case: 2021-05

Respondent: Christopher Maundrell, RPF (# 4545)

Date of Decision: December 2022

Type: Alternative Complaint Resolution

Background

The respondent contacted the ABCFP in April 2021 to self-report a claim from the Compliance and Enforcement Branch of the Ministry who identified that the work the respondent completed was in contravention of the *Woodlot License Planning and Practices Regulation*. The respondent was found to have misclassified an S3 stream as non-fish bearing and harvested within riparian reserve zones.

The Investigation Committee authorized an investigation under bylaw 12-5 on April 19, 2021.

Investigation

Because the allegations of this complaint took place prior to the implementation of the *Professional Governance Act*, the investigators used the *Foresters Act* and previous ABCFP bylaws to conduct their investigation.

Following the review of the investigation report, the Investigation Committee determined that the respondent breached the following bylaws under the *Foresters Act*:

Bylaw 11.3.3

To have regard for existing legislation, regulation, policy, and common law; and to seek to balance the health and sustainability of forests, etc.

Bylaw 12.5.1

To exercise due diligence by being prudent and doing all work with constant and careful attention.

Decision

The Investigation Committee passed a motion to proceed with Alternative Complaint Resolution (ACR) under ABCFP Bylaw 12-10(2)(a) and s. 72(1) of the *Professional Governance Act*. The ACR requested that the respondent agree to the following:

- a) Undertake not to repeat the conduct to which the matter relates to case 2021-05; and,
- b) Consent to a reprimand.

The reprimand will be part of the respondent's permanent record.